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| 4.               | 25CV0403 | PONY EXPRESS TAX v. CHALAIRE |
| Motion for Leave |          |                              |

Pursuant to California Code of Civil Procedure §473, the Plaintiffs Tax Related Services, a General Partnership of Richard D. Mason and Joyce B. Mason, Richard D. Mason and Joyce Mason individuals dba Tax Related Services (“Plaintiffs”) move the Court for leave to file a Second Amended Complaint in the form attached as Exhibit 1 to the accompanying Declaration of Karen Pine.

Most of the requested changes are not significant, aside from requesting leave to add a cause of action for financial elder abuse. At the time the Plaintiffs filed this case in February 2025, they claim they wanted to avoid the harshness of a financial elder abuse cause of action hoping the matter could get resolved without the situation escalating. Plaintiffs argue that not including the cause of action at the time of the initial filing is excusable.

Defendant opposes, arguing that the Motion is untimely, as it has been over a year since the filing of the Complaint and even the First Amended Complaint, 9 months since trial was set, about 5 months before trial and 4 months before the discovery cut off. Defendant further argues that the Motion is in bad faith because it was brought only in retaliation of Defendant filing counter-claims, serving written discovery, and not making a settlement offer. Defendant argues that Plaintiff fails to plead the cause of action, which is grounds for denial. Lastly, Defendant argues that amendment is likely to prejudice Defendant because it necessitates additional discovery, possibly additional law and motion practice and would lead to a delay in trial.

Plaintiff’s Reply addresses Defendant’s arguments regarding pleading defects but does not further address the reasonableness of the delay or the prejudice to Defendant.

The leave to amend is liberally permitted by the courts, but it is not without its limits. California Rules of Court 3.1324(b)(3) and (4) require a declaration to accompany any such motion stating when the facts that give rise to the amendment were discovered, and justification for why the amendment was not sought earlier. There is no justification given in the Declaration of Richard Mason or Karen Pine. A lack of justification is grounds for denial of a motion for leave to amend. Further, Courts have found that an unmeritorious delay of over 12 months was grounds for denial, *Johnson v. Johnson* (1933) 134 Cal.App. 460, 461; *Vogel v. Thrifty Drug Co.* (1954) 43 Cal.2d 184, 189. When a plaintiff failed to use ample opportunities to pursue an amendment, it was not an abuse of discretion for the court to deny amendment. *Mayer v. Beondo* (1948) 83 Cal.App.2d 665, 671.

While there is a liberal policy in allowing amendment, in this case, the additional cause of action was well known to Plaintiffs at the time of filing and every stage since then. Plaintiffs state that they “wanted to avoid the harshness of a financial elder abuse cause of action hoping the

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matter could get resolved without the situation escalating...[but] the litigation escalated with Chalaire filing a cross-complaint.” (Motion, p. 7, lines 2-6). However, the Cross-Complaint was filed a year ago. There is no other reason given for the delay and the Court finds the delay in bringing the additional cause of action unreasonable and prejudicial.

**TENTATIVE RULING #4: MOTION FOR LEAVE TO FILE SECOND AMENDED COMPLAINT IS DENIED.**

**NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT’S WEBSITE OR BY TELEPHONE TO THE COURT AT (530) 621-6551 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; SEE ALSO LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999).**

**NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY TELEPHONE OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; EL DORADO COUNTY LOCAL RULE 8.05.07. PROOF OF SERVICE OF SAID NOTICE MUST BE FILED PRIOR TO OR AT THE HEARING.**

**LONG CAUSE HEARINGS MUST BE REQUESTED BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED AND THE PARTIES ARE TO PROVIDE THE COURT WITH THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. LONG CAUSE ORAL ARGUMENT REQUESTS WILL BE SET FOR HEARING ON ONE OF THE THREE MUTUALLY AGREEABLE DATES ON FRIDAY AFTERNOONS AT 2:30 P.M. THE COURT WILL ADVISE THE PARTIES OF THE LONG CAUSE HEARING DATE AND TIME BY 5:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. PARTIES MAY PERSONALLY APPEAR AT THE HEARING.**